SYNOPSIS AND LIST OF DATES

1. The petitioner institute in the court of the learned Principal Judge (Sr.Divn) Karwar, a original suit in O.S. No.64/1998 seeking partition and separate possession of the legitimate share in the suit schedule properties. Late Hammanna Nayak and Smt. Beeramma being the parents of the petitioner, the latter instituted the said suit against the other coparceners of the Hindu Undivided Family seeking her 1/5th share in the said properties.

2. Whereas, only the 1st respondent herein who was the 1st defendant in the said suit contested the same by filing his written statement, the other did not at all contend the suit. Based on the pleadings of the contesting parties the trial court framed the issues which have been referred to in paragraph 3 of the judgment appealed from herein. The Trial Court decreed the suit in part questioning which an appeal under Section 96 of the Code of Civil Procedure, 1908, having been filed by the petitioner herself in R.A. No.1/2002 on the file of the learned District Judge, Fast Track Court, Karwar, which

appeal was also contested by only the 1st respondent herein, and the other respondents having remained exparte in the said appeal, it held in partial modification of the decree passed by the Trial Court that as against 11/120th share that had been decreed by the Trial Court, the petitioner-plaintiff was entitled to 1/5th share in the said properties, as had been prayed for by her in the Original Suit. In other words having modified by the decree passed by the Trial Court, the Lower Appellate Court, on appreciation of the entire material on record decreed the suit of the petitioner as had been prayed for by her.

3. It would be pertinent at this stage to submit that none of the respondents herein had questioned the decree passed by the trial court, on the other hand as already stated the plaintiff-petitioner herself felt aggrieved by the said decree in so far as the extent of share that had been decreed in favour of her was concerned.

4. The 1st respondent herein who was the 1st defendant in the Original Suit filed a Regular Second Appeal in R.S.A. No.1421/2007 in the Hon'ble High Court of Karnataka, Circuit Bench at Dharwad, which has allowed the said appeal and has modified the share of the plaintiff-petitioner, confirming the decree passed in the suit, excepting for the modification of the petitioner's share from 11/120th to 12/120th or otherwise as 1/10th share and holding that she has o share in respect of 10 guntas of agricultural lands, two dwelling houses and the

compensation amount in respect of a land involved in the suit. Aggreived by the judgment and decree dated 26th day of June 2013, passed in the Regular Second Appeal, this Memorandum of Special Leave Petition is presented for relief.

LIST OF DATES:

12.10.1998: The petitioner instituted original suit in O.S. No. 64/1998 seeking partition and mesne profits, contending that Hammanna Nayak – the propositors and the father of the petitioner died intestate in the year 1987, and that her mother also died in the year 1990.

22.7.2000: The 1st respondent herein who was the 1st defendant in the said suit alone contested the suit and filed his written statement seeking to deny the legitimate share that the petitioner had claimed. He contended interalia that one of the properties had statedly belonged to the petitioner's mother and that she had bequeathed the same in his favour and that therefore the same was not liable for partitioned.

17.4.2001: Recording of Evidence in the suit was commenced and the petitioner tendered her

oral evidence in the suit. The 1st respondent alone deposed in support of his defence, no other witness having been examined by him either.

31.10.2001: The Trial Court decreed the suit in part holding that the petitioner was entitled to 11/120th share in alls the schedule properties and that she was not entitled to any share in the compensation awarded in respect of the lands acquired and also in the two dwelling houses. The claim for mesne profits was also dismissed by the Trial Court.

1.1.2002: The plaintiff-petitioner appealed from the decree mentioned above, in R.A. No.1/2002 before the learned District Judge, Fast Track Court-II, Karwar, Uttara Kannada District.

3.3.2007: In the appeal so filed the suit was decreed in its entirety as prayed for by the plaintiff-petitioner.

26.6.2013: The Regular Second Appeal in R.S.A. No.1421/2007 filed by the 1st respondent herein was allowed in modification of the decree of the lower Appellate Court and holding that the petitioner is not entitled to

any share in the compensation awarded in respect of the non-agricultural land claimed by the petitioner and also in the two dwelling houses. In other words, by the judgment questioned herein the Hon'ble High Court of Karnataka has restored mutatis mutandis the decree passed by the Trial Court with slight modifications and has interfered with the decreeing of the suit as had been ordered by the District Judge Court.

24.1.2014: The petitioner tho9ugh had engaged a counsel, it is unfortunate that no certified copy had been applied for till this day viz., 24.1.2014.

30.1.2014: Certified copy of the order was delivered and was later passed on to the petitioner who being resourceless for appealing before this Hon'ble Court, required sufficient time for mustering up her financial resources to present this Special Leave Petition, without any intentional delay on her part.

4.2015: Aggrieved this Special Leave Petition is presented.

IN THE SUPREME COURT OF INDIA AT NEW DELHI

(Order XVI Rule 4(1)(a)
Civil Appeal Jurisdiction)

Special Leave Petition

(Under Article 136 of the Constitution of India)

With prayer for interim relief

Special Leave Petition (Civil) No. /2015

IN THE MATTER OF:

Smt. Meenakshi Ramachandra Nayak
aged years,
d/o. Hammanna Nayak,
Teacher,
Residing of Kenchanamane,
Balekera, Ankola Taluk,
Uttara Kannada District,
Karnataka State Petitioner

Versus

1. Sri. Ganapathi Hammanna Nayak
aged 65 years,
s/o. Hammanna Nayak,
R/at . Vandige Village,
Ankola Taluk,
Karwar District – 581 314,
Karnataka State

2. Sybbaraya Hammanna Nayak,
major,
s/o. Hammanna Nayak,
R/at Adlur,
Ankola Taluk,
UK District – 581 314,
Karnataka State.

3. Mahalsmi Raju Nayaj,
major,
d/o. Hammanna Nayak,
C/o. Raju Nayak of Kaikinne Road,
Karwar, UK District – 581 301
(working in PM High School
Ankola Taluk, UK District),
Karnataka State

4. Parvathi,
Aged 35 years,
w/o. Devarayana Gaonkar,
d/o. Hammanna Nayak,
Teacher,
R/at Bellikere,
Ankola Taluk, UK District – 581 314,
(Now at Bhaskar Bhat Compound
Panduranga Krupa, Near Shankaranarayana
Temple, Bestipethe, Kumta Taluk,
UK District, Karnataka State. Respondents

MEMORANDUM OF PETITION FOR SPECIAL LEAVE UNDER ARTICLE 136 OF THE CONSTITUTION OF INDIA FROM THE FINAL JUDGMENT DATED 26.6.2013 PASSED BY THE HON'BLE HIGH COURT OF KARNATAKA, CIRCUIT BENCH, DHARWAR IN R.S.A. No. 1421/2007

To,

The Hon'ble Chief Justice of India,
and his Companion Justices of the
Hon'ble Supreme Court of India,
New Delhi.

The humble petition of the petitioner above named

1. MOST RESPECTFULLY SHOWETH AS FOLLOWS:-

That this Special leave Petition is directed against the judgment dated the 26th June 2013, passed by the Honourable High Court of Karnataka, Circuit Bench, Dharwad in Regular Second Appeal No. 1421/2007 on its file.

2. QUESTIONS OF LAW :-

(i) Whether the Hon'ble High Court was justified in interfering with the well-considered judgment and decree passed by the learned District Judge, Fast Track Court-II, Karwar in Regular Appeal No.1/2002 on its file?

(ii) Whether the questions formulated in paragraph 9 of the impugned judgment could be considered as substantial question of law for consideration under Section 100 of the Code of Civil Procedure, 1908?

(iii) Whether or not the findings contained in the impugned judgment as regard the applications or otherwise of the amended provisions of Section 23 of the Hindu Succession Act, 1956 is tenable?

(iv) Whether the impugned judgment is correct in holding that the petitioner's right to succession was hit by Section 23

of the Hindu Succession Act, 1956, as it stood when the suit for partition was filed by the petitioner?

(v) Whether the findings contained in the impugned judgment that it was erroneous to hold that the petitioner was entitled to succession under Section 8 and 15 of the Hindu Succession Act, 1956?.

(vi) Whether the well-considered judgment and decree passed by the Lower Appellate Court could be interfered with under Section 100 of the Code of Civil Procedure, 1908, when the First Appellate Court was the last court on questions of facts, evidence and pleadings?

3. DECLARATION IN TERMS OF RULE 4(2) :-

The petitioner states that no other petition seeking leave to appeal has been filed by him previously, against the judgment questioned in this Special Leave Petition.

4. DECLARATION IN TERMS OF RULE 6 :-

The Annexures P1 to_____ produced with the Special Leave Petition are all true copies of the documents which formed part of the records of the case in the High Court from the judgment of which court the present Special Leave Petition has arisen.

5. GROUNDS :-

Leave to appeal is sought by the petitioners, on the following grounds.

PLEASE FORMULATE THE SAME GROUNDS

I. The impugned orders are plainly opposed to Section 8 of the Hindu Succession Act, 1956.

II.

6. GROUNDS FOR INTERIM RELIEF :-

NIL

7. MAIN PRAYER :-

It is, therefore, most respectfully prayed that this Hon'ble Court graciously be pleased to :-

a) GRANT Special Leave to appeal from the final judgment dated the 26th June 2013, passed by the Honourable High Court of Karnataka, Circuit Bench, Dharwad in Regular Second Appeal No. 1421/2007 on its file.

and

b) PASS such other or further orders as this Hon'ble Court may deem just and proper in the facts and circumstances of the case, including the award of the costs of the proceedings althrough, and in the interest of justice and equity.

8. PRAYER FOR INTERIM RELIEF :-

NIL

New Delhi
Date:

Advocate for the Petitioner

IN THE SUPREME COURT OF INDIA AT NEW DELHI

S.L.P. NO. /2015 (Civil)

IN THE MATTER OF:

Smt. Meenakshi Ramachandra Nayak Petitioner

Versus

Sri. Ganapathi Hammanna Nayak
and others Respondents

TO,

THE HON'BLE CHIEF JUSTICE OF INDIA AND HIS COMPANION JUDGES OF THE HON'BLE SUPREME COURT OF INDIA.

The humble petition of the petitioner above-named respectfully showeth :-

I.A. NO. / UNDER ORDER RULE OF THE COCE OF CIVIL PROCEDURE, 1908.

The petitioner above-named respectfully submits as follows:-

1. In order to avoid repetition of the contents of the Memorandum of Special Leave Petition and the synopsis and list of dates filed therewith, it is most respectfully prayed that the Hon'ble Court be pleased to read and treat the contents therewith, it is most respectfully prayed that the Hon'ble Court be pleased to read

and treat the contents thereof as a part and parcel of this application. To the extent relevant in this context, the same are hereby reiterated.

2. The petitioner though was represented by a counsel in the Regular Second Appeal before the Hon'ble High Court of Karnataka, at its Circuit Bench, Dharwad, it is unfortunate that she had not been informed of the out-come of the appeal nor was the needed application for furnishing a certified copy of the impugned judgment been applied for by her counsel.

3. On enquiry she came to know that the appeal having been allowed, the decree passed in her favour by the lower apex court has been reversed and interfered with, thereby reducing the share in the suit schedule properties, allotted to her by the said court. Added to the same, she was not possessing the required financial resources to approach this Hon'ble Court immediately. After the certified copy of the order filed with the Special Leave Petition was obtained through another counsel, in the impecunious situation in which she has been placed, approaching this Hon'ble Court with a Special Leave Petition immediate was an uphill task for her. Evenso, with the limited resources that she has been able to muster up over the period of time from January 2014, and with the help of her learned counsel who has presented this petition on her behalf, the same has been presented without brooking any intentional delay on her part.

4. Having regard to the merits of the case, it is respectfully submitted that the unintended and unavoidable delay in filing the Special Leave Petition should not come in the way of the petitioner

getting substantial justice when she has been pitted with technicalities of delay and the merits of the case.

5. As is well-settled by the authoritative pronouncement of this Hon'ble Court, interalia in the case of State of Bihar Vs. Khameshwar Prasad and others vide 2000 (9) SCC page 94 when justice and technicalities are pitted against one another the cause of justice would required to be preferred.

6. Wherefore, it is respectfully prayed that this Hon'ble Court be pleased to :-

condone the delay of days in filing the above mentioned Special Leave Petition, in the interest of justice and equity.

New Delhi ADVOCATE FOR THE PETITIONER
Date:

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CIVIL) Nos. /2015

IN THE MATTER OF:

Smt. Meenakshi Ramachandra Nayak Petitioner

Versus

Sri. Ganapathi Hammanna Nayak
and others Respondents

AFFIDAVIT

I, Smt. Meenakshi Ramachandra Nayak, aged years, d/o. Hammanna Nayak, Teacher, Residing of Kenchanamane, Balekera, Ankola Taluk, Uttara Kannada District, today at Dharwad, Karnataka State, do hereby solemnly affirm and state on oath as follows:-

1. I am the petitioner in the Special Leave Petition and as such I am fully conversant to the facts of the case.

2. The contents of the Synopsis and the List of Dates (B to) paras 1 to 8 from pages 1 to and the I.As from pages to respectively have been read by me carefully and I have understood the same, I state that the facts herein above are true to my knowledge; and no part of it is false; I say that all the information is based on records and advice given by an advocate which I believe is true and correct.

3. The Annexures annexed with the SLP are true copies of their respective originals.

DEPONENT

DHARWAD
Date: 31.3.2015

VERIFICATION

Solemnly affirmed and signed before me on this the 31st day of March 2015, that the contents of this affidavit having been read over to me in Kannada Language known to me and are admitted to be true and correct to the best of my knowledge and belief.

DEPONENT

Verified at Dharwad on this day of 31st day of March, 2015

No.of corrections

Identified by me

Advocate